

SERVICE AGREEMENT

This Service Agreement ("Agreement") is entered into on _____, by and between:

CLIENT: _____

Address: _____

and

SERVICE PROVIDER: _____

Address: _____

1. SERVICES

The Service Provider agrees to provide the following services to the Client:

The Service Provider shall perform the services in a professional and timely manner and shall use reasonable care in performing the agreed work.

2. TERM

This Agreement begins on _____ and continues until _____ unless terminated earlier in accordance with this Agreement.

The parties may extend the Agreement by written agreement.

3. FEES AND PAYMENT

The Client agrees to pay the Service Provider a total fee of \$_____.

Payment shall be made according to the following schedule:

Invoices are payable within _____ days after receipt.

The Service Provider may suspend performance if undisputed amounts remain unpaid after the applicable payment period.

4. CLIENT RESPONSIBILITIES

The Client shall provide the Service Provider with information, materials, access, and cooperation reasonably necessary to perform the services.

The Service Provider shall not be responsible for delays caused by the Client's failure to provide required information or access.

5. DELIVERABLES

The Service Provider shall provide the following deliverables:

The parties may agree in writing to additional deliverables or changes to the scope of services.

6. INTELLECTUAL PROPERTY

Unless otherwise agreed in writing, materials created specifically for the Client under this Agreement shall be handled according to the following ownership arrangement:

Each party retains ownership of intellectual property that it owned before entering into this Agreement.

Neither party transfers ownership of its pre-existing intellectual property merely by entering into this Agreement.

7. CONFIDENTIAL INFORMATION

Each party may receive confidential information belonging to the other party.

A party receiving confidential information shall not disclose or use that information except as necessary to perform its obligations under this Agreement or with the other party's written permission.

This obligation does not apply to information that:

(a) is publicly available through no breach of this Agreement;

(b) was already lawfully known by the receiving party;

(c) is independently developed without using the confidential information; or

(d) must be disclosed by law or a valid legal order.

8. REPRESENTATIONS

Each party represents that it has the authority to enter into this Agreement.

The Service Provider represents that it will perform the services in accordance with the requirements expressly stated in this Agreement.

9. WARRANTIES

Except for warranties expressly stated in this Agreement, the services are provided subject to applicable law and any limitations stated in this Agreement.

The Service Provider does not guarantee a particular business result unless that result is expressly agreed to in writing.

10. LIMITATION OF LIABILITY

To the maximum extent permitted by applicable law, neither party shall be liable to the other for indirect, incidental, special, or consequential damages arising from this Agreement.

Any limitation of liability shall not apply to liability that cannot legally be excluded or limited.

11. TERMINATION

Either party may terminate this Agreement by providing _____ days' written notice to the other party.

Either party may terminate the Agreement immediately if the other party materially breaches the Agreement and fails to correct the breach within a reasonable period after receiving written notice.

Upon termination, the Client shall pay the Service Provider for services properly performed up to the effective termination date.

12. EFFECT OF TERMINATION

Termination does not affect rights or obligations that accrued before termination.

Any provisions that are intended by their nature to continue after termination shall remain effective.

13. INDEPENDENT CONTRACTOR

The Service Provider is an independent contractor and is not an employee, partner, joint venturer, or agent of the Client unless expressly agreed otherwise in writing.

The Service Provider is responsible for determining how the services are performed, subject to the requirements of this Agreement.

14. ASSIGNMENT

Neither party may assign its rights or obligations under this Agreement without the prior written consent of the other party, except where applicable law permits such assignment.

15. NOTICES

Any notice required under this Agreement shall be provided in writing using the contact information provided by the parties.

Each party shall promptly notify the other party of any change in its contact information.

16. ENTIRE AGREEMENT

This Agreement represents the complete understanding between the parties concerning the services and replaces prior discussions or agreements concerning the same subject matter.

Any amendment to this Agreement must be made in writing and signed by both parties.

17. SEVERABILITY

If any provision of this Agreement is found to be invalid or unenforceable, the remaining provisions shall continue to the extent permitted by law.

18. GOVERNING LAW

This Agreement shall be governed by the laws applicable in the jurisdiction agreed upon by the parties:

19. SIGNATURES

The parties acknowledge that they have read and understood this Agreement and agree to its terms.

CLIENT

Signature: _____

Name: _____

Date: _____

SERVICE PROVIDER

Signature: _____

Name: _____

Date: _____